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A Comprehensive Guide to the Law of Confidence and Breach of Confidence in
Singapore: Insights from [2024] SGCA 16

INSIGHTS

A COMPREHENSIVE GUIDE TO THE LAW OF CONFIDENCE AND BREACH OF CONFIDENCE IN SINGAPORE: INSIGHTS FROM [2024] SGCA 16

General

Last updated 20.01.2026



INTRODUCTION

In the realm of intellectual property law, the protection of confidential information is a critical aspect that businesses and individuals must navigate meticulously. The



recent case of *Priscilla Lim Suk Ling and UrbanRx Compounding Pharmacy Pte Ltd v Amber Compounding Pharmacy Pte Ltd and Amber Laboratories Pte Ltd* [2024] SGCA 16 provides pivotal insights into the law of confidence and the intricacies involved in claims for breach of confidence in Singapore. This article delves into the legal principles, case facts, judicial reasoning, and the broader implications of this landmark decision.

MATERIAL FACTS OF THE CASE

The appellants, Priscilla Lim Suk Ling and UrbanRx Compounding Pharmacy Pte Ltd, were embroiled in a legal battle with the respondents, Amber Compounding Pharmacy Pte Ltd and Amber Laboratories Pte Ltd. The dispute arose from allegations that confidential information, obtained during Ms. Lim's part-time employment with the respondents, was used without authorization in the appellants' business operations.

KEY LEGAL ISSUES

The case presented two significant legal issues:

1. Whether the respondents were entitled to claim both traditional damages for wrongful gain and equitable damages for wrongful loss in the same action.
2. Whether these claims could be made in respect of the same set of confidential information.

THE LAW OF CONFIDENTIALITY: AN OVERVIEW

The protection of confidential information has evolved significantly over time. Historically, it found expression in various forms such as breach of contract and the tort of inducing breach of contract. The modern law of confidence, however, firmly establishes an independent cause of action for the misuse of confidential information.

Traditional Approach: The Coco Test

The traditional test for breach of confidence, laid down in *Coco v A N Clark (Engineers) Ltd* [1969] RPC 41, requires the plaintiff to prove:

1. The information has the necessary quality of confidence.
2. The information was imparted in circumstances importing an obligation of confidence.



3. There was unauthorized use of the information to the detriment of the plaintiff.

This approach primarily protects the plaintiff's interest in preventing wrongful gain from the misuse of confidential information.

Modified Approach: The I-Admin Test

In *I-Admin (Singapore) Pte Ltd v Hong Ying Ting and others* [2020] 1 SLR 1130, the Singapore Court of Appeal recognized the need to protect an additional interest: the plaintiff's interest in avoiding wrongful loss. This approach applies where confidential information is accessed without authorization but not necessarily used, thus broadening the scope of protection.

JUDICIAL REASONING IN [2024] SGCA 16

The Court of Appeal's decision in *[2024] SGCA 16* hinged on the interpretation and application of these two tests. The court clarified that:

1. **Narrow Issue:** A plaintiff can claim for both wrongful gain and wrongful loss interests in the same action, provided these claims pertain to different sets of confidential information.
2. **Broad Issue:** The court found that claims for wrongful gain and wrongful loss in respect of the same set of documents are mutually exclusive. The application of the Coco test precludes the concurrent application of the I-Admin test for the same information.

The court emphasized that this distinction prevents double recovery and maintains clarity in the burden of proof required for each claim.

PRACTICAL IMPLICATIONS

This decision underscores the importance of precise pleadings in breach of confidence cases. Plaintiffs must clearly delineate their claims for wrongful gain and wrongful loss, ensuring they pertain to distinct sets of information. Additionally, legal practitioners should be mindful of the evidential requirements and strategic considerations in framing their clients' cases.

CONCLUSION

The *[2024] SGCA 16* decision marks a significant development in the law of confidence in Singapore. It reinforces the dual protection afforded to confidential



information, safeguarding against both wrongful gain and wrongful loss. This case serves as a crucial reference for legal professionals and businesses alike, highlighting the nuanced approach required to navigate claims of breach of confidence effectively.

In conclusion, the evolving landscape of confidentiality law necessitates a robust understanding of both traditional and modern approaches to protect sensitive information adequately. The insights from this landmark case provide valuable guidance for future legal strategies and the protection of intellectual property in Singapore.

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